

Pricing is valid for thirty (30) days from the proposal date.

Proposal to:
All Bidders

Project:
770 Broadway - NYU

Engineer:
Loring Consulting Engineers

Opportunity / Quote No. (Ver): SILVANO DRAGONE_260304_115800704 / Silvano Dragone_260602_075741762 (1)

August 18, 2026

**This proposal is based on the BOD 7/10/2026 Construction Documents Review Plans and Project Manual.
These cooling towers are intended to be rigged in place.**

TOWER MODEL	PERFORMANCE CONDITIONS	MOTOR DATA	TOWER DIMENSIONS	WEIGHTS
Quantity of (1) Marley NC Class Diamond Series model NC8411SUN factory assembled 6-Cell crossflow cooling tower	Per 6-cell tower: 9,200 gpm 100.0 °F Hot Water 85.0 °F Cold Water 78.0 °F Entering WB	NEMA 30 HP 1 speed / 1 wind 3 phase / 60 Hz / 230/460v Premium Efficiency 1.2sf / TEFC 1200 RPM Inverter duty nameplated 60Hz/120V space heater External shaft grounding ring per motor <i>Site Voltage; 480</i>	Each cell: (without options) Length 11' - 10 3/4" Width 22' - 5" Height 23' - 2 7/8" Per 6-cell tower: (with options) Length 81' - 2 1/2" Width 26' - 11 1/2" Height 24' - 1 7/8"	Per cell: Shipping: 26,886 lb Operating: 46,611 lb Per 6-cell tower: Shipping: 161,317 lb Operating: 279,667 lb Heaviest Lift: 11,181 lb

Quantities shown below are per tower.

Base Tower Construction/Equipment:

Full stainless steel construction including casing, framing, collection and distribution basins.
This tower also includes an ultra quiet fan, which requires site installation and possible re-pitching. (*)
FT10/16 ft deep sound attenuation package on air inlets with stainless steel attenuator frames and aluminum baffles. (*)
Marley designed Geareducer® with 5-year warranty and 5-year oil change interval design (when using Marley synthetic gear oil)
20 mil PVC film fill with integral louvers and drift eliminators designed and manufactured by Marley.
Published sound data is independently verified by a CTI licensed test agency.
CTI Thermal certification per STD-201 and CTI Sound certification per STD-204.
59 in fan cylinder extension. (*)

Collection Basin Connections and Accessories:

All flanges are to Class 125 ANSI B16.1 standard.
All threads are to American Standard Pipe Taper Thread.
(6) 8 in (203 mm) diameter depressed side sump outlet(s) with trash screen(s) and anti-vortex plate(s). (*)
12 in (305 mm) diameter hole and bolt circle(s) for equalization, One per Cell
(6) 8 in (203 mm) diameter Bottom Inlet Bypass connection(s) (sized for 100% of design flow)
4 in (102 mm) diameter combination drain and overflow in each cell
(6) 1 in (25.4 mm) water make-up float valve(s) (*)
Probe type electronic water level sensor, in all cells, with the following events, low-alarm, high-alarm (*)
18 kW per cell 480/3 volt/phase electric immersion heater package for freeze protection of the collection basin during cold weather system shutdown, includes control panel, heater elements and disconnect switch(*)

Distribution Basin Inlet and Accessories:

(1) self-balancing 10 in (254 mm) diameter PVC bottom inlet connection per cell. All piping is supplied and installed from the factory terminating at the cold water basin.
All internal piping is PVC. External piping is PVC. (*)
Variable flow nozzles for condenser flow turn down.

Maintenance & Maintenance Access Features:

Tower is designed in accordance with OSHA safety standards.
This quotation includes features that will allow safe access on the fan deck while the fan is still operating.
External lube line with dipstick
Low oil level switch, Marley Ultrasonic DC sensor + AC interface relay box, with 25 ft (7.6 m) sensor cord (*)
Convenient access to the collection basin and plenum area is provided via a large access door located on each endwall
(2) Access door platforms (*)
Stainless Steel (per SS Grade) plenum walkway in each cell
Internal mechanical equipment access platform in each cell
Easy fitting perimeter guardrail, kneerail & toeboard (*)
(2) Cased face ladders (*)
Ladders extended 60 in below base of tower (*)
Easy fitting ladder safety cage(s) (*)
Self closing safety gate(s) included at the top of the access ladders (*)
One davit with hand winch per tower (Installation/operation of davit requires the removal of some fan cylinder segments) (*)

Control Systems:

(1) IMI 685A Mechanical vibration cutoff switch, DPDT, manual reset + 30' cord and panel per cell (*)

Warranty:

The SPX Cooling Tech, LLC Certification of Limited Warranty ("Warranty Certificate") shall include a 5-year material warranty (from date of shipment). All other terms of the Warranty Certificate remain unchanged and in effect.

Field Installed Equipment: (*)

The field installed portion of the equipment will require installation time after the tower arrives at the jobsite. The price to install these components is NOT included in the total price.

Total Sell Price (US Dollar) \$ 1,570,000.00
(Freight included. Installation labor not included. Taxes not included.)

Pricing is valid for thirty (30) days from the proposal date and shipment on or before October 1, 2027.

Payment Terms: NET 30 days from date of shipment (subject to credit approval)

Freight Terms: F.O.B. SPX plant(s) Olathe, Kansas, USA with freight prepaid

Estimated Shipment Lead-Time After Drawing Approval: 24-25 Weeks

Lead times are estimates and subject to change

In the event the Purchaser requests a change from the originally acknowledged date of shipment, SPX Cooling will try to accommodate such request, however, reserves the right to charge for any additional handling, transportation, storage, and mobilization costs.

Orders must have a purchase order at the time of order entry, or received no later than 45 days from order entry date. Any orders without purchase orders after the 45 day period will be subject to price and freight increases and possible delays in scheduling.

Option to include VFD as described below:			
(6)	VFD 30 HP 3/50/60 480 NEMA 3R outdoor painted steel enclosure ABB ACH580 with options NFD + E-Clipse bypass. Includes 2 wire RTD (4-20mA) and certified startup services.	\$	40,000.00
Material Alternate:			
	Price add to revise tower material of construction from S301L stainless steel to series 304 stainless steel	\$	50,000.00
Warranty Option:			
	The SPX Cooling Tech, LLC Certification of Limited Warranty ("Warranty Certificate") shall include a 5 year labor warranty. All other terms of the Warranty Certificate remain	\$	60,000.00

	unchanged and in effect.		
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Please advise if the drawing type you need has not been supplied. These are the available drawing types:

- PDF 2D documents - These documents display the tower geometry with dimensions, notes and annotations.
- DWG 2D AutoCAD layouts – This 2D layout is a full scale electronic representation of the tower to insert into your own AutoCad layout. The .dwg contains no text so should be accompanied by the PDF files.
- JT 3D solid model files - These lightweight 3D solids may be used by solid model programs such as NX (Unigraphics), I-DEAS, Solid Edge, Catia, Pro/Engineer, and Autodesk Inventor 2009, among others. A free JT viewer can be found at www.jt2go.com. JT is not compatible with Revit; however, the JT file can be converted to DWG using Autodesk Inventor and then imported into Revit. This results in a heavy Revit file thus not suitable for all applications.
- Revit – Configuration specific Revit files are not yet available. However, a lightweight Revit part family showing the basic tower may be downloaded from our website. Go to <http://spxcooling.com/revit>.

Notes:

- **Offer to purchase is valid for thirty (30) days from the proposal date. The proposal price is subject to change if SPX Cooling Tech, LLC does not receive a Customer purchase order within 30 days from the date of the proposal, or if there are any changes to the scope of work or shipment date.**
- It is the responsibility of the purchaser to determine the suitability of this equipment for the specific application and all applicable code requirements. Please reference the supporting steel arrangement drawing for the product windload and seismic capacities. The product is designed, analyzed, and tested in accordance with the requirements of the International Building Code and American Society of Civil Engineers. Design of the anchorage support system is not included in this quote and shall be administered by others.
- **Any purchase orders should be made out to SPX Cooling Tech, LLC.**
- **When this proposal is signed by the Purchaser in the space provided below, this form will be considered a purchase order from the Purchaser to SPX Cooling Tech, LLC ("SPX COOLING").**
- All sales, use or excise taxes payable by SPX Cooling, or to be collected by SPX Cooling from Purchaser, in connection with the sale, installation, or use of the proposed equipment shall be added to the prices quoted above at time of shipment. Any purchase order submitted for a tax exempt project must be accompanied by the Purchaser's valid tax exemption certificate for the state to which the goods are to be delivered. It is the Purchaser's responsibility to provide this documentation. SPX Cooling will not be liable for any failure of Purchaser to pay sales tax without said documentation.
- SPX Cooling's responsibility for delivery is limited to date of shipment. Carrier can be requested to give a maximum of 24 hours notice of delivery. Shipments involving more than one truck may arrive at a job site at different times.
- Purchaser to receive, unload, haul, hoist and set tower(s) in place.
- SPX Cooling hereby warrants the inclusion of labor, when specifically purchased as an option. Labor coverage shall be limited to the specified duration (as indicated by the option purchased) beginning at date of shipment by SPX Cooling to the original installation.
- **This proposal expressly limits acceptance of the terms of the offer, including SPX Cooling's Standard Terms and Conditions and the applicable SPX Cooling Standard Warranty Certificate. These documents are attached. No terms or conditions, including warranty provisions, that are submitted by the Purchaser as part of its acceptance shall be valid, and all such terms are hereby expressly rejected and have no force or effect.**

Silvano Dragone

Accepted by (see note above):

Representative

Purchaser

SPX Cooling Tech, LLC

Printed Name

Printed Name

Printed Name

Title

Title

Title

Date

Date

Date

Please fill in the required information below prior to submitting your order:



SPX Cooling Tech, LLC (NY)

450 7th Ave, Ste. 2405
NEW YORK, NY 10123

email: Silvano.Dragone@spx.com

TOTAL AMOUNT

Purchaser's Company Name

PO#

Phone

Fax

Shipping Address

Billing Address

Requested Delivery Date

Delivery Notify Contact Name

Delivery Notify Contact Phone



TERMS AND CONDITIONS OF SALE BY SPX Cooling Tech, LLC ("Seller")

1. ACCEPTANCE AND GOVERNING PROVISIONS. Orders shall be binding upon Seller when accepted in writing by an authorized representative of Seller. SELLER'S ACCEPTANCE OF BUYER'S ORDER IS CONDITIONED UPON BUYER'S ACCEPTANCE OF THE TERMS AND CONDITIONS SET FORTH HEREIN (THE "TERMS") AND BUYER'S AGREEMENT TO BE BOUND BY AND COMPLY WITH THESE TERMS. THESE TERMS, THE TERMS ON THE FACE OF THIS DOCUMENT, AND ALL REFERENCED ATTACHMENTS CONSTITUTE THE ENTIRE AGREEMENT BETWEEN BUYER AND SELLER, AND NO AMENDMENT OR MODIFICATION SHALL BE BINDING ON SELLER UNLESS SIGNED BY AN OFFICER OR AUTHORIZED EMPLOYEE OF SELLER. THE FAILURE OF SELLER TO OBJECT TO PROVISIONS CONTAINED IN ANY PURCHASE ORDER OR OTHER DOCUMENT OF BUYER SHALL NOT BE CONSTRUED AS A WAIVER BY SELLER OF THESE TERMS OR AN ACCEPTANCE OF ANY OF BUYER'S PROVISIONS. ANY CONFLICTING OR ADDITIONAL TERMS OR CONDITIONS SET FORTH BY BUYER IN A PURCHASE ORDER OR OTHER DOCUMENT SHALL NOT BE BINDING UPON SELLER, AND SELLER HEREBY EXPRESSLY OBJECTS THERETO.

2. LIMITED WARRANTY.

(a) Seller warrants to Buyer that the goods manufactured by Seller will be free from defects in material and workmanship and any services performed by Seller will be in accordance with the specifications of Seller's proposal and appropriate industry standards, as more particularly set forth in Seller's Certificate of Limited Warranty ("Warranty Certificate"), as attached hereto and incorporated herein.

(b) Refer to the applicable Warranty Certificate for specific product coverage.

(c) If within such period Buyer gives Seller immediate notice of the discovery of any such defects, and it shall be proven to Seller's reasonable satisfaction that any goods are defective or any services are nonconforming, such goods shall, at Seller's option, be repaired or replaced (F.O.B. Seller's factory, with all removal and installation to be at Buyer's expense unless Buyer has paid for labor to be included in the warranty to be provided) and such services corrected or a substitute obtained.

(d) Warranty on repaired or replaced equipment will be for the time remaining under the terms of the original warranty.

(e) Seller warrants that all services or goods performed, produced, and furnished hereunder will comply with all applicable federal, state, and local laws, regulations, rules and ordinances.

(f) THE FOREGOING WARRANTIES STATE SELLER'S ENTIRE WARRANTY (EXCEPT TITLE) AND BUYER'S SOLE AND EXCLUSIVE REMEDY RELATED TO SUCH GOODS AND SERVICES. EXCEPT AS EXPRESSLY SET FORTH ABOVE, SELLER MAKES NO WARRANTY OF ANY KIND WHATSOEVER, AND SELLER EXPRESSLY DISCLAIMS ANY WARRANTIES IMPLIED BY LAW, INCLUDING, BUT NOT LIMITED TO, ANY WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

(g) THIS WARRANTY SHALL NOT APPLY TO ANY LOSS OR DAMAGE RESULTING FROM: (1) NORMAL WEAR AND TEAR; (2) ALTERATION, MISUSE, ABUSE, OR IMPROPER INSTALLATION BY BUYER, POWER FAILURES, OPERATION OR MAINTENANCE BY BUYER OR A THIRD PARTY; (3) ACCIDENT, FIRE, FLOOD, OR ACTS OF GOD; OR (4) INACCURATE OR INCOMPLETE INFORMATION OR DATA SUPPLIED OR APPROVED BY BUYER.

3. LIMITATION OF LIABILITY. SELLER SHALL NOT BE LIABLE UNDER ANY THEORY OF RELIEF, INCLUDING, WITHOUT LIMITATION, BREACH OF WARRANTY, BREACH OF CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR OTHERWISE, ARISING OUT OF OR RELATED TO AN ORDER OR SELLER'S ACTS OR OMISSIONS FOR ANY INCIDENTAL, SPECIAL, CONSEQUENTIAL, PUNITIVE, EXEMPLARY, OR LIQUIDATED DAMAGES OF ANY NATURE, INCLUDING, WITHOUT LIMITATION, LOSS OF ANTICIPATED PROFITS OR REVENUES, DAMAGE TO PROPERTY, OR LOSS OF USE. SELLER'S ENTIRE LIABILITY FOR DIRECT DAMAGES RESULTING FROM ANY PERFORMANCE OR FAILURE TO PERFORM, DELAY, BREACH OF CONTRACT, BREACH OF WARRANTY, IMPLIED INDEMNITY OR OTHERWISE UNDER THIS AGREEMENT SHALL NOT EXCEED THE PURCHASE PRICE ACTUALLY PAID BY BUYER TO SELLER. IN ADDITION, IN NO EVENT SHALL SELLER BE LIABLE FOR ANY DAMAGES IF AND TO THE EXTENT SUCH DAMAGES ARE CAUSED BY THE NEGLIGENCE OF BUYER, THE END USER OF THE GOODS, OR ANY OTHER THIRD PARTY WHICH IS NOT UNDER THE DIRECT CONTROL OF THE SELLER.

4. PATENTS AND TRADEMARKS.

(a) If notified promptly by Buyer in writing and provided with authority, information, and assistance, Seller shall defend and indemnify Buyer, or may at any time settle, at Seller's option, any suit or proceeding alleging that any goods used, designed or sold by Buyer pursuant to Seller's proposal infringe any United States patent or trademark. Seller shall pay any direct damages awarded in such suit or proceeding up to the amount of the depreciated purchase price of the goods. In the event any goods are held to constitute such infringement and the use of the goods is enjoined, Seller shall, at its option and expense: (1) procure for Buyer the right to continue using the goods; (2) replace the goods with non-infringing goods; (3) modify the goods so that they become non-infringing; or (4) remove the goods and return the depreciated purchase price. THE FOREGOING CONSTITUTES THE ENTIRE LIABILITY OF SELLER AND THE SOLE AND EXCLUSIVE REMEDY OF BUYER FOR PATENT OR TRADEMARK INFRINGEMENT RELATED TO THE GOODS.

(b) NOTWITHSTANDING THE FOREGOING, SECTION (a) ABOVE SHALL NOT APPLY TO ANY SUIT OR PROCEEDING ALLEGING INFRINGEMENT RESULTING FROM OR RELATED TO SELLER'S COMPLIANCE WITH THE SPECIFICATIONS OR DESIGN OF BUYER OR THE USE OF THE GOODS OF SELLER IN COMBINATION WITH OTHER GOODS OR MATERIALS. Buyer shall defend and pay any damages awarded in such suit or proceeding described in this section (b).

5. DELIVERY AND DELAY.

(a) Unless otherwise agreed to in writing and signed by Seller: (1) goods shall be delivered FOB Seller's Factory (domestic shipments), or FCA Seller's nominated facility (international shipments, not including Canada) (INCOTERMS 2020), Full Freight Allowed to the jobsite (FOR COMPLETE TOWER SHIPMENTS ONLY), with delivery to the initial carrier constituting delivery to Buyer; (2) title to the goods and all risk of damage or loss shall pass to Buyer upon delivery to the initial carrier; (3) transportation costs shall be paid by Buyer; and (4) Buyer shall have sole responsibility for filing any claims with any carrier for delay, loss or damage. FOR CANADA ORDERS, the following shall apply: Title passes to the Buyer at the point of shipment, SPX Plant. Seller has agreed to and has included in the prices here all costs for transportation to Canada, Customs Clearance and all duties.

(b) Dates of delivery or other performance are estimates and are based on, among other things, timely receipt from Buyer of accurate and complete approved drawings, technical data, a fully executed contract or purchase order, and any necessary documents or information required by Seller's credit department. Seller shall have the right to delay shipment of the goods until all required documents or information have been provided by Buyer, and any other requirements, including the payment of any past due amounts, have been fulfilled. Seller shall not be liable for any delay or resulting expense, loss, damage or liquidated damages for any failure to supply materials, labor or supervision as required because of fire, flood, Acts of God, inclement weather, strikes, labor disputes, riots, thefts, accidents, transportation delays, acts or failure to act of Government, Buyer, Owner or any other third party not under Seller's direct control, or any other cause whatsoever, whether similar or dissimilar to the above, beyond the reasonable control of Seller. In the event of such delay, the time of completion will be subject to equitable adjustment, and any additional costs incurred shall be shared between the parties. Seller shall immediately notify Buyer if it expects a delivery to occur earlier or later than the delivery date requested by Buyer. Any claim for missing parts or other items of the goods must be made within sixty (60) days from the date of delivery.

(c) In the event Buyer has not taken title and possession of the goods within six (6) months from the date of the purchase order, freight costs may be subject to adjustment at Seller's discretion.

6. STORAGE. If Buyer's site is not ready to accept goods on the scheduled delivery date, Seller may store the goods at its facility or any other suitable location until such time as Buyer is ready to receive the goods. Buyer shall be liable for any storage fees as determined by Seller. Storage fees will be 1.5% of the PO value per week plus any applicable logistics cancellation costs and crane handling costs. Storage will be assessed weekly. Buyer accepts all risk of damage or loss while the goods are in transit to storage, in storage, or in transit from storage. Buyer shall be responsible for all handling, transportation and storage costs for such goods while they are in transit to storage, in storage, or in transit from storage.

7. CHANGES, SUBSTITUTIONS, AND CANCELLATION.

(a) Any changes requested by Buyer shall be effective upon written acceptance of Seller at Seller's corporate offices. Any changes accepted by Seller which affect the specifications or scope of work or schedule of an order shall entitle Seller, as appropriate, to an adjustment to the price, freight charges, delivery schedule, or other terms affected by such change.

(b) Seller shall be entitled to a change order for an equitable adjustment in the price, completion date, and/or other provisions of this Agreement, in the event Seller is adversely impacted by circumstances beyond Seller's reasonable control, including, but not limited to: (1) any act, delay or omission of Buyer, (2) any error, omission or change in Buyer-provided information, (3) a change in law or permits, (4) a Force Majeure Event, (5) termination, (6) interference from other contractors or Buyer caused delays, (7) suspension, (8) Buyer directed changes, (9) differing site conditions.

(c) Seller may furnish suitable substitutes for materials unobtainable due to regulations of governmental authorities or unavailability of materials from suppliers.

(d) Buyer may cancel an order upon payment of the applicable cancellation fee, calculated as a percentage of the purchase price according to the following schedule. If the order is canceled: (1) more than 10 business days after the order is submitted – 15%; (2) between 60 and 30 days before the ship date provided in the Ship Date Confirmation – 85%; and (3) 30 days or fewer before the ship date provided in the Ship Date Confirmation – 100%. If the ship date is adjusted by mutual agreement, the cancellation fee periods will be adjusted accordingly.

8. APPROVALS, INSPECTION AND ACCEPTANCE:

(a) Buyer's approval, or failure to disapprove, of drawings submitted hereunder constitutes Buyer's acceptance of equipment design, specifications and other data contained therein.

(b) Inspection of goods at Seller's plant by Buyer, or Buyer's representatives, will be permitted insofar as such inspection does not interfere with Seller's production and provided that complete written details of such inspection are submitted to Seller no less than ten (10) days in advance.

(c) The goods and services shall be deemed accepted, and any claim of Buyer against Seller with respect to an order shall be waived and not enforceable, unless: (1) Buyer has promptly inspected the goods and services, and (2) written notice from Buyer of any defect has been received by Seller within forty-eight (48) hours of rejection of any equipment inspected upon delivery or performance of any services.

(d) Buyer must give Seller reasonable advance notice and authorization to attend any tests designed to demonstrate that goods or services are defective, and the test conditions are mutually agreed to by Seller and Buyer.

(e) Goods may not be returned without obtaining written authorization and shipping instructions from an authorized representative of Seller.

9. PRICES, PAYMENT AND CREDIT.

(a) Unless other terms have been expressly stated by Seller in writing, Seller's prices: (1) are valid for thirty (30) days from the proposal date; (2) do not include costs for installation of goods; and (3) do not include costs of any permits, licenses, fees and similar charges required by law or local practice.

(b) Unless otherwise noted on the face hereof, the payment terms shall be one-hundred percent (100%) net thirty (30) days from the date of shipment. Pro-rata payments shall become due with partial shipments of goods or partial delivery of services. Seller shall charge 1 1/2% per month (or such lower percentage as required by applicable law) of the unpaid invoice balance, commencing sixty (60) days following the invoice date.

(c) Seller reserves the right to require cash in advance if, for any reason, Seller reasonably doubts Buyer's financial responsibility.

10. TAXES, DUTIES, & TARIFFS. Prices do not include any sales or use tax, either federal, state, or local, payable on the transaction under any applicable statute, or any duty or tariff imposed on the goods. All such amounts must be paid by the Buyer and will be invoiced as a separate line item on invoices unless Buyer provides Seller with a valid tax exemption for the applicable goods and services.

11. PRICE ADJUSTMENT CLAUSE. Prices are subject to adjustment at any time, in Seller's sole discretion, due to changes in costs associated with or related to raw materials, labor, transportation, import duties, tariffs, taxes, other like fees payable on imported merchandise, or other unforeseen economic factors beyond the seller's control. In the event of a price adjustment, Seller will provide written notice to the customer at least 30 days in advance, and the parties will cooperate and commence negotiations in good faith to modify the terms and conditions of this Agreement and/or any affected purchase order, including without limitation making necessary modifications to price, quantity, delivery date, or shipping schedule. Any such adjustments will apply to any orders which were placed prior to the price adjustment, if the date of shipment of goods is greater than 6 months after the price adjustment.

12. GOODS FOR EXPORT. If the ultimate destination of the goods is outside of the country of origin, Buyer shall provide the ultimate destination country, end-user, and end use on its purchase order or shall complete a U.S. Department of Commerce Form BIS-711 (Statement of Ultimate Consignee and Purchaser). In the event that Buyer provides false information to Seller or purchases goods for export without so notifying Seller, Buyer shall have sole liability and shall defend and indemnify Seller for any loss or damage (including without limitation, claims of governmental authorities) arising from the export from the country of origin or the import into another country of such goods, including, without limitation, those related to packaging, labeling, marking, warranty, contents, use, or documentation of the goods. Buyer shall have sole responsibility for obtaining any required export licenses. Buyer shall neither take, nor solicit Seller to take, any action which would violate any anti-boycott or any export or import statutes or regulations of the United States or other governmental authorities and shall defend and indemnify Seller for any loss or damage arising out of or related to such action. Seller reserves the right to refuse to sell, transfer, assign, or allow for export any goods if, in Seller's reasonable judgment, the goods would be imported into a country in violation of any law, or used in any process in violation of any law.

13. PROPRIETARY INFORMATION. Seller retains title and all intellectual property rights, including, but not limited to, any patent, trademark, copyright, trade secret or otherwise to all engineering and production prints, drawings, technical data, and other information and documents that relate to the goods and services sold to Buyer. Unless advised by Seller in writing to the contrary, all such information and documents disclosed or delivered by Seller to Buyer are to be deemed proprietary to Seller and shall be used by Buyer solely for the purpose of inspection, installation, and maintenance and not used by Buyer for any other purpose.

14. COMPLIANCE WITH LAWS. All goods manufactured and services performed hereunder shall be in compliance with all applicable state and federal laws, rules, regulations, standards and codes including, but not limited to, the Fair Labor Standards Act, occupational health and safety laws and applicable provisions relating to obligations of government contractors and subcontractors, including 41 CFR 60-1, *et. seq.* (including the reporting, record keeping and affirmative action program requirements) incorporating the Equal Opportunity Clause of Executive Order 11246, the maintenance of nonsegregated facilities, the Vietnam Era Veteran's Readjustment Act of 1974, The Rehabilitation Act of 1973 and Executive Order 11701 relating to the employment of veterans.

15. CONFLICT MINERALS. Seller shall comply with Section 1502 of the Dodd-Frank Act (the "Conflict Minerals Law") relating to goods that contain tantalum, tin, tungsten or gold that directly or indirectly finance or benefit armed groups in the Democratic Republic of Congo or the nine adjoining conflict countries, Angola, Burundi, Central African Republic, the Republic of the Congo, Rwanda, South Sudan, Tanzania, Uganda, and Zambia ("Conflict Minerals"). Seller shall promptly and accurately complete surveys and certifications requested by Buyer related to Conflict Minerals. Seller will inform Buyer (a) whether Conflict Minerals are known to be present in any goods provided by Seller to Buyer or whether it is "indeterminable" that Conflict Minerals are present in any goods provided by Seller to Buyer, and (b) at the request of Buyer, the status of Seller's policies and procedures relating to compliance with the Conflict Mineral Law. Upon reasonable notice, Buyer shall be permitted to audit such records as reasonably necessary to confirm Seller's compliance with this Article

16. MISCELLANEOUS. All rights and remedies of each of the parties under these Terms are in addition to its rights at law and in equity, except where specifically disclaimed. Any delegation or assignment by Buyer of any of its responsibilities or rights hereunder without Seller's prior written consent, shall be void. The validity, performance, and interpretation of this document and any referenced attachment thereto shall be governed by the law of the state of Kansas, U.S.A. It is expressly agreed that the United Nations Convention on Contracts for the International Sale of Goods will not apply to this agreement. The invalidity or illegality of any provision of these Terms shall not render invalid or illegal any other provision therein. Seller's failure at any time to require performance by Buyer of any of these Terms shall not serve as a waiver or diminish Seller's right to demand strict compliance with such provision or with other of the Terms.

SPX Cooling Tech, LLC Certification of Limited Warranty

Version 00-160H

SPX Cooling Tech, LLC ("SPX Cooling") hereby warrants the stainless steel Marley® NC® cooling tower as follows:

1. This NC stainless steel tower will be free from all defects in material and workmanship for a period of (5) five years from date of shipment by SPX Cooling to the original installation. This warranty is limited to the mechanical equipment, which consists of fan(s), motor(s), gear-box(es), driveshaft(s), coupling(s) sheaves and mechanical equipment support(s) [but excluding items such as the bearing assemblies and V-belts (if applicable) which are warranted for (18) months and oil seals which are warranted for (18) months with replacement seals furnished through the mechanical warranty] fill (including integrally molded louvers and drift eliminators) and fill supports; upper and lower basins and their associated components; structural columns; and all assembly hardware. To obtain the expected life of the Geareducer® and warranty coverage, scheduled maintenance, in accordance with the Marley User Manuals, is required to check oil level, check for leaks at oil plugs, lube line connections, seals and correct as necessary during that time. All other nonstandard purchased equipment, such as electrical equipment, consisting of motor controls, Marley VFD, basin heaters, low water makeup valves, etc. are excluded from this five year warranty and will carry the standard warranty provided by its manufacturer or in accordance with an SPX Cooling warranty certificate for that product. The majority of all nonstandard purchased equipment is shipped either loose or in plastic containers in the basin of the tower. These components must be stored in a dry and secured environment until actual installation. Reported issues stemming from moisture in the components or loss of components will not be warranted. To obtain the expected life of the motor and warranty coverage, motors must be installed and operated following the *Marley Electric Motor User Manual 92-1475*.
2. The aforementioned components will be free from failure due to corrosion for a period of five years from the date shipment by SPX Cooling to the original installation.
3. SPX Cooling further warrants that the NC stainless steel tower meets the performance standards set forth in CTI Standard STD-201 Certification Standard for Water Cooling Towers. Performance altering operations such as reduced horsepower or fan speed changes voids CTI Certification.

The obligation under this warranty is limited to the repair or the replacement of defective materials, at SPX Cooling's option, F.O.B. original shipping point or EXWORKS plant. Warranty on repaired or replaced equipment will be for the time remaining under the terms of the original warranty. This warranty is non transferable.

This warranty does not obligate SPX Cooling to bear the cost of labor, transportation charges, or other costs incurred in connection with the repair or replacement of defective parts; nor does this warranty apply to normal wear and tear nor to damage resulting from operations not conforming with the NC's operation and maintenance instructions, accident, alteration, misuse or an abnormally corrosive or abrasive use environment.

Failure of SPX Cooling to exercise or enforce any right or provision under this warranty shall not constitute a waiver of such right or provision.

SPX Cooling's total liability for damages related to the performance of or failure to perform shall be limited to the amount of the contract price and in no event shall either party hereto be responsible or held liable to the other for any special, punitive, indirect, incidental, or consequential damages.

The above warranties are in lieu of all other warranties expressed or implied, and all implied warranties of merchantability and fitness for a particular purpose are hereby disclaimed and excluded from this agreement.

Registration of this warranty is required within 90 days of installation of your product to validate the warranty. Registration will also ensure receipt of the latest product information and owner notices. To register go to spxcolling.com/en/registration and complete the form.

TERMS AND CONDITIONS OF SALE BY SPX Cooling Tech, LLC ("Seller")